

26STCV10834 26STCV10834

County: los-angeles

Division: Civil Law and Motion

Department: 730

Hearing date: 2026-08-19

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Case Number: 26STCV10834 Hearing Date: August 19, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

CHY

FASHION, INC.,

Plaintiff,

vs.

POLO

WORLD, INC., et al.,

Defendants.

Case No.:

26STCV10834

Hearing

Date:

August 19, 2026

[TENTATIVE]

ORDER DENYING MOTION TO QUASH SERVICE
OF SUMMONS AND DENYING REQUEST FOR JOINDER

I. BACKGROUND

Plaintiff Chy Fashion, Inc. ("Chy") filed this action against Defendants Polo World, Inc., ("Polo"), Brian Kim ("Kim") and Mary Lee ("Lee") arising from an alleged breach of contract for the purchase of garment goods, in which Defendants failed to pay for or return \$287,373.70 worth of goods. Chy sued Defendants for eight causes of action based upon the alleged breach.

On April 16, 2026, Chy filed proof of personal service on Brian Kim, alleging he was served on April 7, 2026, at 7:36 p.m. at 251 W. Dryden St., Apt 14, Glendale, California 91202.

On April 24, 2026, Kim filed the instant motion to quash service of the summons and complaint. Chy filed two oppositions to the motion.

On August 4, 2026, Lee filed a notice of joinder.

II. LEGAL
STANDARD

"[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction. [Citation.]" (Dill v. Berquist Construction Co. (1994) 24 Cal.App.4th 1426, 1444.)

When a defendant challenges the court's personal jurisdiction on the ground of improper service of process, the burden is on the plaintiff to prove the existence of jurisdiction by proving the facts requisite to an effective service. (Summers v. McClanahan (2006) 140 Cal.App.4th 403, 413.) "The filing of a proof of service creates a rebuttable presumption that the service was proper. However, the presumption arises only if the proof of service complies with the applicable statutory requirements." (Floveyor Internat., Ltd. v. Superior Court (1997) 59 Cal.App.4th 789, 790.)

“ ‘On a motion to quash service of summons, the plaintiff bears the burden of proving by a preponderance of the evidence that all jurisdictional criteria are met. [Citations.] The burden must be met by competent evidence in affidavits and authenticated documents; an unverified complaint may not be considered as supplying the necessary facts.’ [Citation.]” (Brown v. Garcia (2017) 17 Cal.App.5th 1198, 1203; see also Sheard v. Superior Court (1974) 40 Cal.App.3d 207, 211 “[W]here a defendant properly moves to quash service of summons the burden is on the plaintiff to prove facts requisite to the effective service.”].)

III. DISCUSSION

A. Kim's Motion to Quash

Kim

requests the Court quash service of summons arguing he was never served with the summons and complaint. (Mot. p. 3 ¶¶ 59-60.) Kim instead contends Chy inappropriately left documents “next door to Defendant’s business,” and no competent adult or person in charge was served. (Mot. p. 4 ¶¶ 68-69.) While the motion is signed, it does not comply with the legal requirements to be considered a sworn statement in support of Kim’s assertions, as Kim did not certify or declare the statements made to be true and correct. (Code of Civ. Proc. § 2015.5.[1]) Kim has not provided any admissible evidence to suggest service of summons was not properly effectuated on Kim.

In

contrast, on April 16, 2026, Chy submitted a proof of personal service on Kim. The proof of service was signed, under penalty of perjury, by James Baird, a registered California process server. Under Evidence Code section 647, a properly executed proof of service provided by a registered process server raises a presumption of valid service.

(Evid. Code § 647 [“The return of a process server registered pursuant to Chapter 16 (commencing with Section 22350) of Division 8 of the Business and Professions Code upon process or notice establishes a presumption, affecting the burden of producing evidence, of the facts stated in the return.”]) Absence evidence to the contrary, the Court has no reason to believe this proof of service is faulty or fraudulent. (See Palm Prop. Invs., LLC v. Yadegar (2011) 194 Cal. App. 4th 1419, 1428 [reversing and remanding because trial court failed to apply the presumption of Evid. Code § 647 and defendant failed to submit evidence to overcome the presumption].) Chy has met its burden to establish that

service of the summons and complaint was proper, and Kim has failed to provide evidence to overcome the presumption. (Summers v. McClanahan (2006) 140 Cal.App.4th 403, 413.) Therefore, the Court denies the motion.

B. Joinder

The Court denies Lee's request for joinder as untimely. A joinder to a motion should be served pursuant to the deadline set forth for that particular motion. (See Persson v. Smart Inventions, Inc. (2005) 125 Cal.App.4th 1141, 1176-77.) Lee's motion fails to provide the required notice for a motion to quash.

Pursuant to section 1005, a motion to quash must be filed and served at least 16 court days before the hearing. At all times relevant to Lee's joinder, this motion was set to be heard on August 19, 2026. Therefore, Lee's joinder needed to be filed and served by July 28, 2026. Although Lee alleges joinder was initially served on April 24, 2026, and lost in the mail, there is no evidence of Lee filing joinder until August 4, 2026. Therefore, the Court denies the request for joinder due to insufficient notice.

Lee may bring a separate motion to quash that is properly noticed under section 1005.

IV. CONCLUSION

Kim's motion to quash service of summons and complaint is therefore DENIED.

Lee's request for joinder is DENIED.

Kim is ordered to give notice.

DATED:

August 19, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE

TAKE NOTICE:

- Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

- If a

party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

- Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

- If the

parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated

statutory references are to the Code of Civil Procedure.